REPUBLIC OF THE PHILIPPINES
SANGGUNIANG PANLUNGSOD NG DABAW
CITY OF DAVAO

EXCERPTS FROM THE MINUTES OF THE REGULAR SESSION OF THE 17TH SANGGUNIANG PANLUNGSOD OF DAVAO CITY HELD ON MAY 5, 2015

ORDINANCE NO. 0325-15
Series of 2015

AN ORDINANCE CLOSING OFF THE CITY OF DAVAO TO MINING OPERATIONS

WHEREAS, Section 16, Article II of the 1987 Philippine Constitution guarantees that the State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature;

WHEREAS, Section 16 of Republic Act No. 7160 (Local Government Code of 1991) mandates that every local government unit shall exercise powers essential to the promotion of the general welfare, the maintenance of ecological balance, and the preservation of comfort and convenience of inhabitants;

WHEREAS, the pristine watersheds, river basins, and recharge aquifers of Davao City—particularly the Panigan-Tamugan watershed and Talomo-Lipadas river systems—serve as the indispensable potable water lifelines for more than 1.6 million residents;

WHEREAS, extensive geological assessments, environmental impact documentation, and multi-sectoral public hearings confirm that metallic mining, open-pit mineral extraction, and chemical leaching cause catastrophic deforestation, aquifer contamination, heavy metal poisoning, and permanent ecological degradation;

WHEREAS, the landmark principle of inter-generational responsibility established under Oposa v. Factoran mandates that current trustees of local governance protect natural resources for generations yet unborn;

WHEREAS, the Sangguniang Panlungsod of Davao City resolves that no economic royalty or fiscal incentive can compensate for the irreversible destruction of the city's water recharge zones and agricultural biodiversity;

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled that:

SECTION 1. TITLE.

This Ordinance shall be known and cited as 'An Ordinance Closing Off the City of Davao to Mining Operations' or the 'Davao City Mining Closure Ordinance of 2015'.

SECTION 2. DECLARATION OF POLICY.

It is hereby declared the policy of the City Government of Davao to maintain ecological balance, safeguard its potable water sources, preserve agricultural landholdings, and shield its inhabitants from the devastating effects of extractive mineral exploration and exploitation.

SECTION 3. TERRITORIAL COVERAGE.

The provisions of this Ordinance shall strictly apply to all lands, upland territories, ancestral domains, watershed recharge areas, conservation zones, and water bodies located within the entire territorial jurisdiction of Davao City.

SECTION 4. DEFINITION OF TERMS.

For purposes of this Ordinance, the following terms shall be defined as follows:

a. Mining — refers to the extraction, exploration, prospecting, utilization, development, or processing of minerals, whether metallic or non-metallic, through open-pit, underground, tunneling, placer, or chemical leaching mechanisms.

b. Metallic Minerals — refer to minerals such as gold, copper, nickel, chromite, iron, silver, and other base or precious metallic ores.

c. Quarry Resources — refer to common rocks, sand, gravel, earthfill, diorite, limestone, and other non-metallic minerals used exclusively for building and infrastructure construction that do not contain valuable metallic ores in economically workable quantities.

d. Mineral Agreements — refer to national contracts, permits, Financial or Technical Assistance Agreements (FTAAs), or Mineral Production Sharing Agreements (MPSAs) granted under Republic Act No. 7942.

SECTION 5. PROHIBITION ON MINING OPERATIONS.

No approval, clearance, permit, or endorsement shall be granted or issued by the City of Davao through its Sangguniang Panlungsod or the City Mayor to any person, natural or juridical, to undertake any and all forms of mining operation, mineral exploration, prospecting, or processing in any area within the territorial jurisdiction of Davao City. The City Mayor and all administrative departments are expressly prohibited from issuing Mayor's Clearances, Business Permits, or Locational Approvals to mining concessionaires holding national mineral agreements.

SECTION 6. EXEMPTION OF TRADITIONAL QUARRY RESOURCES.

The prohibition established under Section 5 shall not apply to the extraction of non-metallic quarry resources, such as sand, gravel, boulder, and earthfill for local construction needs; Provided, that said extraction strictly adheres to the Davao City Watershed Code, possesses valid environmental compliance certificates, does not involve metallic substances, and secures prior written clearance from the City Mining Regulatory Board.

SECTION 7. PENAL SANCTIONS.

Any person or corporate entity that violates the provisions of this Ordinance shall be punished by a fine of Five Thousand Pesos (■5,000.00) and imprisonment of not less than six (6) months nor more than one (1) year, or both, at the discretion of the court.

In addition, the business permit of the offending entity shall be perpetually cancelled, its mining machinery and extractive equipment impounded and forfeited in favor of the City Government, and its operational site subject to summary physical closure.

SECTION 8. SEPARABILITY CLAUSE.

If, for any reason, any section or provision of this Ordinance is held unconstitutional or invalid by a competent court, the other sections or provisions not affected thereby shall remain in full force and effect.

SECTION 9. EFFECTIVITY CLAUSE.

This Ordinance shall take effect immediately upon its approval and publication in a local newspaper of general circulation in Davao City.

ENACTED, May 5, 2015 by the 17th Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sanggunian

ATTESTED:

PAOLO Z. DUTERTE
Vice Mayor & Presiding Officer

APPROVED, May 15, 2015:

RODRIGO R. DUTERTE
City Mayor